



United States
Attorney's Office
District of Massachusetts



Operations Manager Pleads Guilty to Kickback Scheme

Friday, January 3, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A New York operations manager pleaded guilty today in federal court in Boston to conspiring to offer and pay kickbacks to doctors in exchange for ordering medically unnecessary brain scans.

Timothy Doyle, 45, of Selden, N.Y. pleaded guilty to one count of conspiracy to violate the anti-kickback statute. U.S. District Court Judge Nathaniel M. Gorton scheduled sentencing for April 3, 2025.

From at least June 2013 through at least September 2020, Doyle conspired with others, including two managers for a mobile medical diagnostics company that performed transcranial doppler (TCD) scans, to enter into kickback agreements with various doctors. TCD scans are brain scans that measure blood flow in parts of the brain. Doyle and his alleged co-conspirators agreed to offer and pay doctors kickbacks, some in cash and others by check, based on the number of TCD ultrasounds the doctors ordered. Doyle and his alleged co-conspirators created purported rental and administrative service agreements, which on paper made it appear as if doctors were compensated for the TCD company's use of space and administrative resources of the ordering doctor's practice based on fair market value and not based on the volume or value of referrals. These agreements were shams that hid the true nature of the arrangement of paying per test.

The scheme resulted in fraudulent bills of approximately \$70.6 million to Medicare. Medicare paid approximately \$27.2 million to the TCD company for the fraudulent claims.

The charge of conspiracy to violate the Anti-Kickback Statute provides for a sentence of up to five years in prison, three years of supervised release and a fine of up to \$250,000. Sentences are imposed by a federal district court judge based upon the U.S. Sentencing Guidelines and statutes which govern the determination of a sentence in a criminal case.

Acting United States Attorney Joshua S. Levy; Roberto Coviello, Special Agent in Charge of the U.S. Department of Health and Human Services, Office of Inspector General; Jodi Cohen, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; Jonathan Wlodyka, Acting Special Agent

in Charge of the Internal Revenue Service’s Criminal Investigation Division, Boston Field Office; Carol S. Hamilton, Regional Director of the U.S. Department of Labor, Employee Benefits Security Administration, Boston Regional Office; Ketty Larco-Ward, Inspector in Charge of the U.S. Postal Inspection Service, Boston Division; and Christopher Algieri, Special Agent in Charge of the U.S. Department of Veterans Affairs Office of Inspector General, Northeast Field Office made the announcement today. Assistant U.S. Attorneys Howard Locker and Mackenzie Queenin of the Health Care Fraud Unit are prosecuting the case.

The details contained in the charging documents are allegations. The remaining defendants are presumed innocent unless and until proven guilty beyond a reasonable doubt in a court of law.

Updated January 3, 2025

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